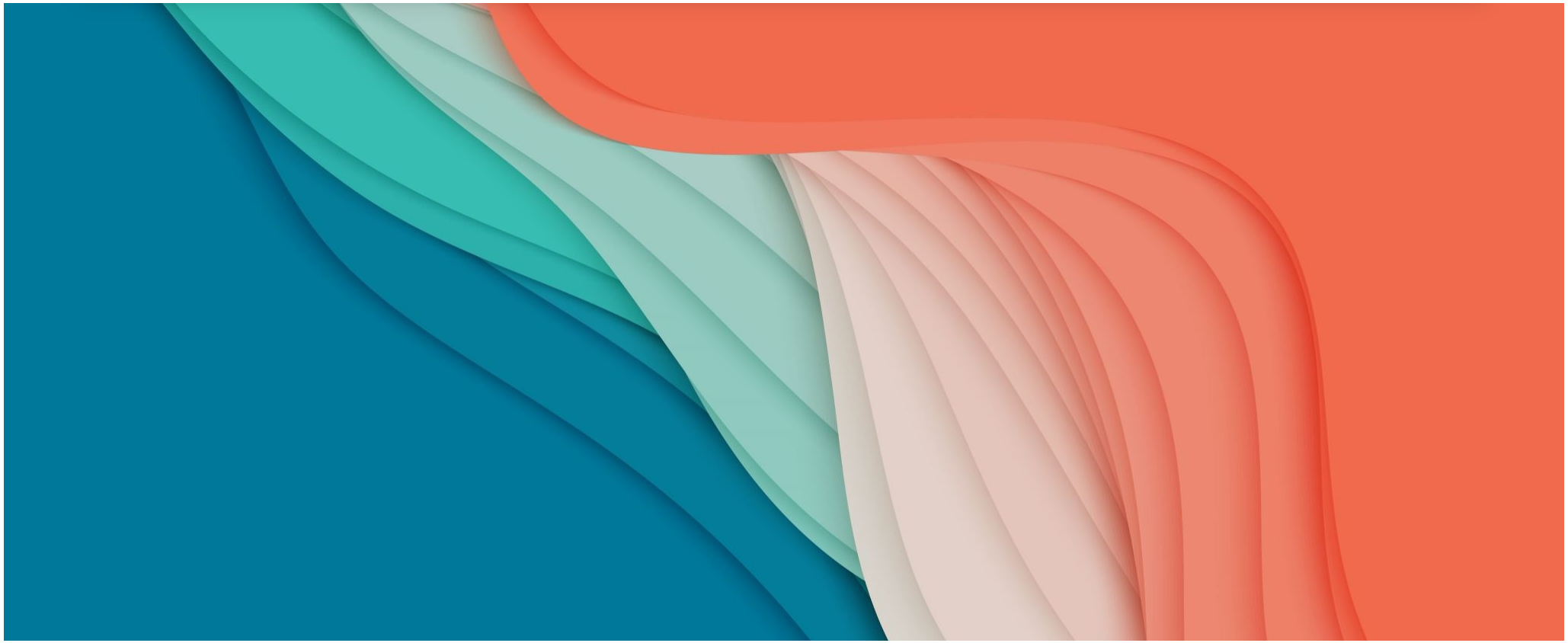
Justice Frameworks

COLLEGE 117

April 1, 2026



Today

Continue discussion of Rawls

Discuss Daniels' Focus Questions: Just Health

Rawls

“A theory of justice depends upon a theory of society …”



Each person has the same indefeasible claim to a fully adequate scheme of equal basic liberties, which scheme is compatible with the same scheme of liberties for all

Rawls: First Principle of Justice

Basic liberties (Rawls)

- Political liberty (vote, public office)
- Freedom of speech & assembly
- Liberty of conscience & freedom of thought
- Freedom of the person and right to hold personal property
- Freedom from arbitrary arrest & seizure

Rawls: Second Principle

Social and economic inequalities are only permissible if they satisfy two conditions:	They are to be attached to offices and positions open to all under conditions of fair equality of opportunity;
	They are to be to the greatest benefit of the least-advantaged members of society (the difference principle)

DECISION IN THE ORIGINAL POSITION

	Person X	Person Y	Person Z
Society A	10	10	10
Society B	12	13	14
Society C	5	10	25
Society D	2	9	100

You don't know who you are (Person X? Person Y? Person Z?)

Which society should you choose to bring about?

From Ryan Doody.com

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The “basic structure of society” (Rawls)

Distributes certain primary goods

- Social primary goods
  - Rights & liberties
  - Powers and opportunities
  - Income and wealth
- Natural goods (influenced by basic structure, but not directly under its control)
  - Health & vigor
  - Intelligence & imagination

Do you agree with Rawls' view of Health and Vigor as Natural Goods – that they are influenced by basic structure but not directly under its control?

Consider from “behind the veil”:

What do you think an appropriate distribution of rights/resources would look like in society?

Potential ways to distribute resources

1. Laissez Faire: Markets will operate without government intervention, except to protect private property (including intellectual property) and to place modest limits on the emergence of oligopolistic and monopolistic markets.

2. Equality of Resources: People have roughly equal resources available to them over their full lives.

3. Sufficiency: Everyone will have a `basic needs' safety net guaranteed. Above that level, markets will determine rewards, except as the democratically elected legislature chooses to constrain them. (If you select this principle, be prepared to explain what count as basic needs and why).

4. Maximize for the group that has least: Inequalities of resources will be arranged so that the least advantaged will better off than they would be under any other arrangement.

5. Equality of Welfare: Resources will be distributed so that everyone is more or less equally happy.

More general conception of justice (Rawls) :

All social values are to be distributed equally unless an unequal distribution of any, or all, of these values is to everyone's advantage

Injustice=inequalities that are not to the benefit of all

Daniels: Just Health



Fundamental Question:

As a matter of justice, what do we owe each other to promote and protect health in a population and to assist people when they are ill or disabled?

Is health of special moral importance?

Daniels: Special moral importance of health derives from its impact on opportunities



Daniels: Focal Questions

- Is health of special moral importance?
  - Derives from its impact on our opportunities
- When are health inequalities unjust?
  - When they derive from unjust distribution of socially controllable factors affecting population health and its distribution

Daniels: Focus questions

- How can we meet health needs fairly under resource constraints?
  - Fair deliberative process (to supplement guidance from the general principles)

Coming attractions:



Fundamental Question: As a matter of justice, what do we owe each other to promote and protect health in a population and to assist people when they are ill or disabled?

- Process: participatory approaches to technology
- Health as social good and interaction with social structure